

ALITO, J., dissenting

F. 3d 257, 261 (CA3 2001), cert. denied, 534 U.S. 1155 (2002); *Wrightson v. Pizza Hut of Am., Inc.*, 99 F. 3d 138, 143 (CA4 1996); *Hamm v. Weyauwega Milk Products, Inc.*, 332 F. 3d 1058, 1062 (CA7 2003); *Medina v. Income Support Div., N. M.*, 413 F. 3d 1131, 1135 (CA10 2005); *Evans v. Georgia Regional Hospital*, 850 F. 3d 1248, 1255 (CA11), cert. denied, 583 U.S. 1044 (2017). Similarly, the other Circuit to formally address whether Title VII applies to claims of discrimination based on transgender status had also rejected the argument, creating unanimous consensus prior to the Sixth Circuit's decision below. See *Etsitty v. Utah Transit Authority*, 502 F. 3d 1215, 1220–1221 (CA10 2007).

The Court observes that “[t]he people are entitled to rely on the law as written, without fearing that courts might disregard its plain terms,” *ante*, at 674, but it has no qualms about disregarding over 50 years of uniform judicial interpretation of Title VII's plain text. Rather, the Court makes the jaw-dropping statement that its decision exemplifies “judicial humility.” *Ante*, at 681. Is it humble to maintain, not only that Congress did not understand the terms it enacted in 1964, but that all the Circuit Judges on all the pre-2017 cases could not see what the phrase discrimination “because of sex” really means? If today's decision is humble, it is sobering to imagine what the Court might do if it decided to be bold.

IV

What the Court has done today—interpreting discrimination because of “sex” to encompass discrimination because of sexual orientation or gender identity—is virtually certain to have far-reaching consequences. Over 100 federal statutes prohibit discrimination because of sex. See Appendix C, *infra*; e.g., 20 U.S.C. § 1681(a) (Title IX); 42 U.S.C. § 3631 (Fair Housing Act); 15 U.S.C. 1691(a)(1) (Equal Credit Opportunity Act). The briefs in these cases have called to our attention the potential effects that the Court's reasoning may have under some of these laws, but the Court waves those considerations aside. As to Title VII itself, the Court